

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR SEPTEMBER 15, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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| 1.
9:00 AM | MSP15-00257 ESTATE OF: LAMAR B PARKER
HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR FILED 2/13/24 BY
LEINAALA PARKER-WARREN

Need:
1. Appearances
2. Evidence of issuance of Letters of Administration to Leinaala Parker-Warren in
Estate of Penny Parker (#P24-01578).

Notes:
a. Minutes of 6/18/2026 state objections are to be filed and served by 7/18/2026.
If objections aren't filed then they are deemed waived.
b. Objection by Rico Robinson, on behalf of the heirs of the Estate of Penny
Parker filed 6/18/2026.
c. Penny Parker post-deceased decedent. Decl. filed 6-17-2026 states letters
have not been issued in Estate of Penny Parker. Order Appointing
Administrator filed 6-9-2026, fixed bond at \$150,000.00. Need letters issued. |
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| 2.
9:00 AM | MSP18-01726 ESTATE OF: RICHARD COHN SR
HEARING IN RE: PETITION TO SET ASIDE FINAL ORDER OF DISTRIBUTION FILED ON 10-15-25 BY
GEORGE COHN

Petitioner, son, must still do the following:
<ol style="list-style-type: none">1. Appear at the hearing2. Verify Petition. PrC § 1021. CCP § 2015.5. CRC 7.1033. File a verified declaration to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.1124. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.5. Submit a Proposed Order
Notes:
<ol style="list-style-type: none">1. Spousal Property Order filed 5-16-2025.2. Disability Accommodation Request received 10-21-2025.3. Order Vacating Order for Probate Retroactively Due to Insolvency and Exonerating Bond Retroactively Nunc Pro Tunc filed 11-19-2025.4. Order granting Attorney's Motion to be Relieved as Counsel filed 7/8/2026. |
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- 3.** **MSP21-01598 ESTATE OF: BERTHELLA JEFFERSON**
9:00 AM HEARING IN RE: PETITION FOR FIRST & FINAL DISTRIBUTION FOR THE ESTATE OF BERTHELLA
 JEFFERSON & WAIVER OF ACCOUNT/WAIVER OF NOTICE OF HEARING FILED ON 8-19-25 BY ERIC
 JEFFERSON & ALANNA MCKINNEY
- See also Line #16--
- Petitioners still must do the following:
1. Appear at the hearing
 2. File evidence of payment of filing fees. Orders on Court Fee Waiver filed 10-14-2021.
 3. Verify Petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.103
 4. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Franchise Tax Board who requested special notice, and file a Proof of Service with court.
 5. File a verified declaration with Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.403
 6. File Satisfaction of creditor's claims; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353
 7. File a verified declaration in compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
 8. File Waiver of Accounting by Eric Jefferson or Accounting that complies with PrC § 1060 *et seq.*
 9. File verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
 10. File verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705.
 11. File a verified declaration to include list of expenses for which petitioner is requesting reimbursement as indicated in proposed Order at page 3, ¶ 3.
 12. Submit a revised, proposed Order as needed in resolution of above and that includes amount of statutory compensation and expenses for which petitioner is requesting reimbursement
- Note(s):
1. Ex Parte Application by Eric Jefferson for Order (1) Suspending Powers of Personal Representative; (2) Imposing Interim Restrictions on Administration; and (3) Continuing Hearing on Petition for First and Final Distribution received as well as Objection by Alanna McKinney.
 2. "Revocation of Waivers; Verified Objection..." filed by Eric Jefferson 7-6-2026.
 3. Petition for Determination of Persons Entitled to Distribution filed by Eric Jefferson 8-28-2026, is set for hearing 12-31-2026.

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4.
9:00 AM

P22-00929 ESTATE OF: BONNIE BOSKO-DAVAYO

HEARING IN RE: PETITIONER EDWIN DACAYO'S FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR; PETITION FOR ORDERS (1) APPROVING REPORT OF ADMINISTRATOR; AND (2) FOR FINAL DISTRIBUTION FILED ON 5/21/26

Need:

1. Inventory and Appraisal filed, as indicated at page 4, ¶ 19
2. Waiver of Accounting by Michael Bosko or Accounting that complies with PrC § 1060 *et seq.*
3. Verified declaration of petitioner showing compliance with Probate Code § 11005
4. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir has previously been confined in any prison or other correctional facility. PrC §§ 216, 9202(b)
5. Spouse did not file an election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to spouse or fees thereon. Need petition (may be *ex parte*) showing good cause for allowing late election, and order. Otherwise you will need amended petition eliminating spouse's portion and a recalculation of statutory fees. Proposed election must comply with LR 7.305. See PrC §§ 13500, 13501, 13502
6. Revised, proposed Order as needed in resolution of above and to include Assessor's Parcel Number. A judgment, decree or order must be complete in itself. LR 7.110

Note: Court will re-review petition upon filing of Inventory and Appraisal.

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5A. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL FILED WITH IAEA FILED BY KRAIG NICHOLAS ON
06/05/2025

Need:

1. Appearances to report status
2. Verified declaration by petitioner to include pages 2-3 of petition, not attached
3. Proof of mailing to Franchise Tax Board who requested special notice. PrC § 1202
4. Verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
5. Order for Probate Form DE-140

Notes:

1. Letters Testamentary issued to Mary Walsh 12-26-2024.
2. Court will re-review petition upon receipt of pages 2-3. It is unclear which will is requested to be admitted. Pages 2-3 of petition are missing and no copy is attached to petition.
3. Bond will be fixed at fair market value of estate, if needed.

5B. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: MOTION TO ENFORCE SETTLEMENT AGREEMENT FILED ON 3-12-25 BY NICHOLAS
KRAIG

Need appearances to report status of settlement

Notes:

1. Receipt and Acknowledgment of Settlement Funds filed 6-10-2025.
2. Per 7-24-2025 minute order, court ordered atty. Housman to file a written objection by 9-8-2025.
3. Mary Walsh's Objection filed 9-8-2025.

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5C. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF MARY WALSH AS ADMINISTRATOR OF THE ESTATE FILED
BY KRAIG NICHOLAS ON 05/15/2025

Need:

1. Appearances to report status
2. Proof of mailing to Franchise Tax Board who requested special notice. PrC § 1202
3. Proposed Order

Note: Kraig Nicholas' Supplement filed 8-19-2026.

5D. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: EX PARTE APPLICATION TO SUSPEND MARY WALSH AS PERSONAL REPRESENTATIVE
OF THE ESTATE OF GARRY N. NICHOLAS; FOR ATTORNEY'S FEES AND COSTS

Need appearances.

Note(s): Objection to Ex Parte received by Mary Walsh

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9. 9:00 AM	P23-02144 HEARING IN RE: TRIAL SETTING	MATTER OF: HUPPERT FAMILY TRUST
Need appearances.		

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10.

9:00 AM

P24-00150

ESTATE OF: MARC LENK

HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR FILED BY RAE LENK-ECKHOLM ON
08/19/2025

Need:

1. Appearances
2. Evidence of appointment of minor beneficiaries' parents as guardian of each minor's estate or Accounting that complies with PrC § 1060 *et seq.*
3. Revised, proposed Order if needed in resolution of above

Note(s):

- a. Minor beneficiaries cannot waive account. Parents, as such, are the natural guardians of the person of their children, not of their estates; they have no authority to waive accounting on behalf of their children.
- b. Petition for Letters of Administration with Will Annexed filed by Sara Parker and Alison Youngblood 8/24/2026, hearing 12/29/2026.

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11. 9:00 AM	P25-00668 ESTATE OF: BRET YATES HEARING IN RE: APPLICATION FOR ORDER TO HALT REMOVAL OF ESTATE PROPERTY PER EX PARTE PETITION FILED 05/28/26
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Petitioner, spouse, still needs to do the following:

1. Appear at the hearing (via Zoom is acceptable).
2. Proof of mailing Notice of Hearing with copy of Ex Parte Application to all beneficiaries and interested parties.
3. Filed Proposed Order.

Note: Substitution of Attorney filed 8/27/2026. Petitioner now pro-per.

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12. **P25-01432** **ESTATE OF: MARTTI RAUHALA**
9:00 AM HEARING IN RE: MOTION TO SET ASIDE JUDGMENT FILED BY JUHANI RAUHALA ON 1-12-26

Petitioner still must do the following:

Appear at the hearing (via Zoom is acceptable)

Note(s):

- a. Letters of Administration issued to John Balquist 11-17-2025.
- b. Objection by John Balquist for Motion to Set Aside Judgment filed 7/16/2026.
- c. Per 5-21-2026 tentative ruling, the matter was continued to September 15, 2026. Notice was insufficient as reflected in the Proof of Electronic Service filed on April 27, 2026. Code of Civ. Proc. § 1005(b). Briefing on this Motion shall be per Code based on the continued hearing date of September 15, 2026.
- d. "Petition For An Order Indemnifying Marjut Johanna Rauhala, Agent Under DPOA For Martti Aulis Rauhala..." filed 7-15-2026, is set for hearing 11-12-2026.

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13.

9:00 AM

P26-00308

MATTER OF: SCHROTH-LEE TRUST AGREEMENT

HEARING IN RE: PETITION FOR INSTRUCTIONS FOR VALIDITY OF TRUST, CONFIRMATION OF TRUST TERMS, DISTRIBUTION OF TRUST ASSETS, FOR ORDER CONFIRMING TITLE TO TRUST PROPERTY FILED ON 02/19/26 BY LARENCE CHANG

Need appearances and update as to meet and confer ordered by the Court 6/30/2026.

Notes:

1. Objection filed by William C. Schroth, Thomas A. Schroth, James F. Schroth, Cody Joseph Petrie and Sara Carol Petrie 6-23-2026.
2. Reply filed 6-26-2026.

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14.

9:00 AM

P26-00957

ESTATE OF: DONALD JOSEPH ABATE

HEARING IN RE: SPOUSAL PROPERTY PETITION FILED ON 06/26/26 BY CAROL CECILE ABATE SPOUSAL
PROPERTY PETITION

Petitioner, spouse, must still do the following:

1. Appear at hearing
2. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
3. File a verified declaration by petitioner to address petition Item # 5.a.(2) (whether decedent is survived by issue of a predeceased child)
4. File a verified declaration to include Attachment 7, stating the facts upon which the petition bases the allegation that the property described in 7a. is property that should pass to the surviving spouse.
5. File a verified declaration to include herself in Item # 9
6. File a verified declaration to include herself in Item # 10 as an executor
7. File Proposed Order, form DE-226.

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15. 9:00 AM	P26-00972 MATTER OF: MILDRED A. HOFF TRUST DATED JULY 16, 1996 HEARING IN RE: PETITION FOR AN ORDER TO CONFIRMING ASSET AS PROPERTY OF DECEDENT'S TRUST FILED ON 5/20/26 BY LYNETT MARIE HOFF Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 3. Proposed Order
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16. MSP21-01598 ESTATE OF: BERTHELLA JEFFERSON

9:31 AM *EX PARTE

Need appearances

--See also Line #3--

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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17. P22-01597 ESTATE OF: CATHERINE BENTON

11:00 AM HEARING IN RE: DOUBLE DAMAGES

Need appearances.